

CloudPlexo Confidentiality and Non-Disclosure Acknowledgment Form

1. Purpose

This form is used to acknowledge that the employee has received, read, and understood CloudPlexo's Confidentiality and Non-Disclosure obligations. The employee agrees to comply with the obligations regarding the protection of confidential and proprietary information during and after employment.

2. Employee Information

<i>Field</i>	<i>Details</i>
<i>Employee Name</i>	
<i>Employee ID</i>	
<i>Job Title /</i>	
<i>Department</i>	
<i>Date of</i>	
<i>Acknowledgment</i>	

3. Acknowledgment Statement

I, the undersigned, acknowledge that I have:

1. Received and read CloudPlexo's Confidentiality and Non-Disclosure Policy.
2. Understood my responsibility to protect the confidentiality of company, client, and third-party information.
3. Agreed not to disclose, share, or use confidential information except as required to perform my duties.
4. Understood that this obligation continues during my employment and after termination or departure from CloudPlexo.
5. Acknowledged that any violation may result in disciplinary action, including termination, and possible legal action.

4. Employee Signature

Employee Signature	Date	Witness Name	Witness Signature

5. For Sr Mgr. People & Ops / ISMS Record

Sr Mgr. P & O/ISMR	Position	Date Received	Comments

Instructions

1. SR MGR. P & O must ensure the employee reads the Confidentiality and Non-Disclosure Policy before signing.
2. The signed form shall be stored in the employee's personnel file and in the ISMS record repository.
3. A copy must be provided to the employee for their reference.

CONFIDENTIALITY & NON-DISCLOSURE AGREEMENT (NDA)

CloudPlexo Nigeria – Employees, Contractors & Vendors

This Non-Disclosure Agreement (“Agreement”) is made between:

CloudPlexo Nigeria (the “Company”)

AND

[Full Name] (the “Recipient”)

Effective Date: **[Insert Date]**

1. Purpose

The Recipient acknowledges that in the course of engagement, employment, or service provision, they will have access to confidential Information belonging to the Company. This Agreement governs the use and protection of such information.

2. Definition of Confidential Information

“Confidential Information” includes all non-public information, including but not limited to:

- Business strategies, pricing, and financial information
- Client, partner, and vendor data
- Software, source code, APIs, systems, and infrastructure
- Trade secrets, intellectual property, and technical processes
- Internal communications, reports, and documentation

3. Scope of Application

This Agreement applies to:

- Employees (full-time, part-time, temporary)
- Independent contractors and consultants
- Vendors, service providers, and third-party partners

All are collectively referred to as the “**Recipient.**”

4. Obligations of the Recipient

The Recipient **MUST** comply with the following obligations:

4.1 Use Restriction (Strict Purpose Limitation)

The Recipient shall:

- Use Confidential Information **only** for authorized Company purposes
- Not use Confidential Information for personal benefit or external business
- Not use such information for any competing or conflicting activity

4.2 Non-Disclosure Obligation

The Recipient shall:

- Not disclose Confidential Information to any third party without prior written approval
- Not share access (including login credentials or systems access) with unauthorized persons

- Ensure that any permitted disclosure is strictly on a “need-to-know” basis and under confidentiality terms

4.3 Access Control & Handling

The Recipient shall:

- Access only the information necessary for their role or assignment
- Not copy, reproduce, download, or store Confidential Information except as required for work
- Not transfer Confidential Information to personal devices, emails, or cloud storage without authorization

4.4 Security & Protection

The Recipient shall:

- Protect Confidential Information using reasonable and industry-standard safeguards
- Comply with all Company IT, cybersecurity, and data protection policies
- Secure devices (e.g., laptops, phones) used to access Company data
- Immediately report any:
 - Data breach
 - Unauthorized access
 - Loss or compromise of information

4.5 Return, Deletion & No Retention

Upon request or termination, the Recipient shall:

- Immediately return all Company materials and devices
- Permanently delete all Confidential Information from personal devices and systems
- Not retain copies (physical or electronic) in any form

4.6 Non-Circumvention

The Recipient shall not:

- Bypass the Company to deal directly with its clients, partners, or vendors using Confidential Information
- Use Company relationships or data to establish independent engagements

4.7 Ongoing Duty of Confidentiality

The Recipient’s obligation to protect Confidential Information:

- Applies during engagement/employment
- Continues **after termination indefinitely**, as long as the information remains confidential

5. Intellectual Property Rights

All work created by the Recipient during the course of engagement:

- Belongs exclusively to the Company
- Includes software, designs, processes, and documentation
- Shall automatically vest in the Company

The Recipient agrees to execute any documents required to confirm ownership.

6. Data Protection Compliance

The Recipient shall comply with:

- The Nigeria Data Protection Act (NDPA) 2023
- All Company data privacy and handling policies

7. Independent Status (For Contractors & Vendors)

Where applicable:

- The Recipient acts as an independent contractor/vendor
- Nothing in this Agreement creates an employment relationship
- The Recipient is responsible for taxes and statutory obligations

8. Exceptions

Confidential Information does not include information that:

- Is publicly available without breach
- Was lawfully known prior to disclosure
- Is disclosed under legal obligation (with notice where permitted)

9. Breach and Remedies

If the Recipient breaches this Agreement:

- The Company may terminate employment or engagement immediately
- The Company may seek:
 - Injunctive relief
 - Financial damages
 - Recovery of losses and legal costs

10. Governing Law

This Agreement is governed by the laws of the Federal Republic of Nigeria.

11. Acknowledgment

The Recipient confirms that they:

- Understand these obligations clearly
- Agree to comply strictly
- Understand that violation may result in legal consequences

Signatures (Contractor and Vendor only)

For CloudPlexo Nigeria Name: _____ Title: _____ Signature: _____ Date: _____	Recipient (Contractor / Vendor) Name: _____ Signature: _____ Date: _____
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